

MATTHEW AARON DAVIS (12403) inactive

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September , 2026

Office of the State Attorney

Sixth Judicial Circuit of Florida

38053 Live Oak Avenue

Dade City, FL 33523

Attn: Bruce Bartlett, State Attorney

**Re: Request for Review of a Sworn-Statement Inconsistency Officer E. Rich (ZH507),
Zephyrhills Police Department Citation No. 2600-2766 / Case No.
2026-MO-000085-MOAXES**

Dear Mr. Bartlett,

I am the pro se defendant in State of Florida v. Matthew Aaron Davis, Case No. 2026-MO-000085-MOAXES, a City of Zephyrhills ordinance citation currently set for arraignment on September 18, 2026, before Judge Poblick in Pasco County Court. I am writing to bring to your Office's attention a documented inconsistency between the copy of the citation issued to me at the scene and the copy that was filed with the Clerk of Court, so that your Office may evaluate it under *Brady v. Maryland*, 373 U.S. 83 (1963), and *Giglio v. United States*, 405 U.S. 150 (1972), as it deems appropriate.

The citing officer, identified on my copy as E. Rich (ZH507), signed a sworn certification stating: "I swear and affirm that the above attached statements are true and correct to the best of

my knowledge and belief.” Two different versions of the probable-cause narrative under that certification exist in the record:

1. My copy, photographed and in my possession also filed with the Sixth Judicial Circuit Clerk of Courts under said case number reads: “On 07/31/26 at approximately 0746 hours, while conducting a special patrol in Zephyr Park, I observed Matthew Davis sleeping on a park bench. Matthew has been warned of this before, which is why he is being cited.”
 - a. The copy filed with the Court Document Index Numbers 2 and 4 in the case file reads: “On 07/31/26 at approximately 0746 hours, while conducting a special patrol at Zephyr Park, I observed Matthew Davis sleeping on a picnic table bench. Matthew has been warned of this before, which is why I am citing him for the above offense.”
2. Furthermore, my primary main concern would be upon the “Defendant” line within the official City of Zephyrhills Police Department Ordinance Violation document. A submitted, altered original copy by Officer E. Rich (ZH507) the defendant signature, officially stating upon penalty of a third degree misdemeanor, the name reads “Refuse” and is hand signed, not by me, Matthew Aaron Davis.
 - a. My original citation (Blue), as instructed not only within the document but also by Officer E. Rich (ZH507) clearly is signed “Matthew Davis”. My official original name signed by me on said date and time. Verifying my receiving of the citation.
3. These are not simply two attempts to transcribe the same illegible handwriting; the two versions describe the location of my conduct differently, and
 - a. one is written in the officer's first-person voice
 - b. while the other refers to the officer in the third person.
4. The arraignment date fields also differ: my copy states September 18, 2026, which matches the Clerk's separately issued Notice of Local Ordinance Violation Arraignment,
 - a. while the court-file copy states September 14, 2026 a date that does not appear anywhere else in the record. I have enclosed legible copies of both versions of the citation for your Office's review.

I am not asking your Office to resolve the underlying citation that matter is before the County Court. I am asking that your Office review this inconsistency and take whatever action it deems

appropriate with respect to Officer Rich's file and any future reliance on his sworn statements, consistent with your Office's disclosure obligations under Brady and Giglio. I would appreciate written acknowledgment of receipt of this letter.

This request is made in the utmost respect to not only the Sixth Judicial Circuit Court of Florida and the Zephyrhills Police Department, but to Pasco County to uphold our highest level of standards in regards to our transparency and commitment to professionalism as the fastest growing county in the United States. Thank you for your time.

Respectfully,

Matthew Aaron Davis (12403) inactive

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